Claim Review - Legal Basis Annex

Toms Jansons | 9 October 2026

This annex reproduces section 9 of the revised formal submission. The declaration and reproduced supplied signature remain in the main document.

9. Legal basis supporting the requested action

Incorporated annex — research and revision dated 9 October 2026. This annex supports sections 1, 3–5. It adds no historical event, finding of breach, benefit decision or proved payment loss. The supplied signature and its provenance note appear in section 6. The separately attachable annex contains the same text.

9.1 Access and data-protection complaint are separate duties

Original SAR — sections 4.2–4.3 and 5.1. UK GDPR Articles 12(3) and 12A govern the response period. The timing amendments in DUAA 2025 section 76 commenced on 5 February 2026; the saving for earlier requests does not apply to a July request. An adjustment requires its own lawful conditions and dated evidence. Please identify actual receipt, any necessary identification or clarification request, extension notice and reasons, and the response/delivery record. On the conditional 17 July receipt → 17 August ordinary calculation, the interval to 9 October is 53 calendar days. Actual receipt and any lawful adjustment still require investigation. See commencement regulations 2(h) and 4 and reference [1].

31 August complaint — sections 4.2 and 5.1. DPA 2018 section 164A, inserted by DUAA section 103, requires facilitated complaints, acknowledgement within the 30-day period beginning when the complaint is received, appropriate enquiries and progress information, and an outcome without undue delay: subsections (2)–(5). On receipt on 31 August, 39 calendar days had elapsed by 9 October, beyond the acknowledgement period; actual receipt and steps taken remain to be established. Regulations 3(a) and 7 of the commencement instrument apply the acknowledgement/response duties to complaints received on or after 19 June 2026. Please identify the original receipt and actual compliance steps. The 30-day acknowledgement period is not a fixed period for completing every investigation, and does not postpone the duty to respond without undue delay. No separate statutory SAR acknowledgement deadline is asserted. [2]

9.2 Personal data, relevant searches and intelligible copies

Sections 4.3 and 4.6. Michael Ashley v Commissioners for HMRC [2025] EWHC 134 (KB), paragraphs 139–146, 161, 175–184, 189–194 and 204–210, supports examining information about an individual by its content, purpose or effect, considering relevant departmental holdings, and supplying context where necessary for intelligibility. The tax-investigation facts differ from this review. The judgment rejects treating an entire enquiry, every policy document or all decision-making reasoning as personal data. Its application to held DWP records requires the relevant information and controller relationship, not an assumption about what exists.

The current search limit is UK GDPR Article 15(1A), inserted by DUAA section 78: reasonable and proportionate searches. Section 78 came into force on Royal Assent, 19 June 2025, under section 142(2)(b); it did not require inclusion in SI 2026/82. Please identify the relevant holdings searched and explain limitations insofar as legally permissible. Access remains to personal data and required supplementary information, with necessary context; it is not unrestricted document disclosure. Article 15(4) and DPA 2018 Schedule 2, including applicable crime/risk-assessment, third-party and privilege provisions, may limit disclosure where their specific conditions are satisfied. A general “review” label does not itself establish an exemption. [6]

9.3 Lawful processing, privacy and automation

Section 4.4. UK GDPR Article 15(1)(a)–(d), (g)–(h) concerns purposes, categories, recipients, retention, sources and applicable automation information. Articles 13(1)(c) and 14(1)(c) separately address purposes and legal basis when their conditions apply. Article 6 and DWP's charter permit grounds other than consent, including legal obligations and public functions. Please identify the actual ground and purpose here and how relevant, proportionate evidence and incidental third-party data are handled. External recipients and internal staff acting under the controller's authority are different questions; usable role/team contact is requested without asserting a right to all staff names. [5][6]

DUAA section 80(1) expressly introduced Articles 22A–22D. It commenced on 5 February 2026 under regulation 2(j) of SI 2026/82; regulation 5 preserves specified safeguards for pre-commencement decisions. Under Article 22A, a significant decision has a legal or similarly significant effect and is solely automated where there is no meaningful human involvement. Article 22C requires information, representations, human intervention and a contest route for decisions within its scope. Please explain any applicable safeguards if such a decision is identified. Automated assistance, matching or profiling alone does not establish that threshold; DWP's 8 September assurance about human decisions remains part of the record. Special-category conditions are separate and no unlawful automation is alleged. See DUAA section 80 and commencement regulations 2(j) and 5.

9.4 Accuracy and usable correction

Sections 3.4 and 4.7. Articles 5(1)(d) and 16 support correction without undue delay of inaccurate personal data and completion of incomplete personal data, taking account of the processing purpose. Please check the particular record relied on against the correspondence: availability is not completed consideration, a correspondence upload is not statement provision, a warning is not an implemented decision, and I expressly declined closure. A record of an opinion is not inaccurate merely because I disagree with it; its character, source and factual basis should be clear. Identify the disputed record, correction made or reason for refusal, and the applicable complaint route. Preserving a clear original/correction history is requested subject to lawful retention, not as an unlimited retention duty. See ICO rectification guidance.

9.5 Evidence requirements, payment action and challenge

Sections 4.1 and 4.5. The Universal Credit etc. (Claims and Payments) Regulations 2013, regulation 38(2)–(3), provide for relevant information requirements. The Universal Credit etc. (Decisions and Appeals) Regulations 2013 distinguish suspension grounds (regulation 44), information requirements/non-compliance (45), termination after suspension (47), and notification where a decision carries an appeal right (51). Where regulation 45 applies, the notified information period is 14 days or a longer period allowed or shown necessary under regulation 45(4). This is distinct from the one-month-or-longer period and full-suspension conditions in regulation 47. The actual notice and route are essential; these provisions do not automatically create a fresh deadline on receipt of a complaint.

Current DWP decision-maker guidance, chapter A4, A4600–A4601 and A4621–A4632, addresses hardship and individual circumstances when relevant discretion is exercised. Please identify the current requirement, notice, period allowed, extension outcome and any action actually taken. DWP can lawfully require relevant evidence; my statements remain prepared but unprovided. Privacy requests do not create an automatic right to redact, withhold or substitute evidence. The guidance cannot itself establish that a decision or payment change occurred here.

Conditional transition or coordination issue — section 4.1. ADM 12/25 and ADM 7/26 describe different legacy-benefit cohorts and exceptions. The December 2025 ESA rule and the July 2026 changes cannot be substituted for one another indiscriminately. The July rules contain run-on, appointee and other award-specific conditions; they do not establish a general July 2027 abolition of Housing Benefit. I have not established that I hold an award affected by these provisions. If relied on, please identify the actual award, operative law, cohort, date, exception and notice. Any separate cross-border question likewise requires the relevant benefit and personal, territorial and temporal facts, rather than a conclusion from nationality alone. [10]

Section 5.4. The Social Security Act 1998 sections 8–12 and the applicable regulations govern decisions, revision/supersession and appeals, with exclusions and prerequisites. A suspension and an appealable entitlement decision are not interchangeable. Please supply the actual notice and correct route. GOV.UK mandatory reconsideration guidance gives the usual one-month period; this complaint does not extend it. An appeal to the Upper Tribunal normally follows a First-tier Tribunal decision and requires permission on an error of law; this submission does not initiate that appeal. Service escalation follows DWP's final response → ICE (six months) → ICE final response → MP/PHSO (published 12-month period), subject to the applicable requirements. [3]

9.6 Participation, dignity and practical answerability

Sections 1, 3.3–3.5 and 4.1, 4.5–4.7. R (Osborn) v Parole Board [2013] UKSC 61, paragraphs 67–71, explains the importance of relevant information, participation and respect for persons affected by decisions. It concerned parole and oral hearings; no automatic hearing right is claimed for this UC review. R (Reilly and another) v Secretary of State for Work and Pensions [2013] UKSC 68, paragraphs 64–65, supports access to information needed for meaningful representations where benefit-related requirements may affect living needs. Its JSA work-scheme facts and historical legislation do not invalidate this bank-statement requirement.

Fairness remains sensitive to the actual statutory scheme: Secretary of State for the Home Department v Kolicaj [2025] UKSC 49, paragraph 77, illustrates a different regime in which the appeal structure satisfied fairness without prior representations. Accordingly, I request clear case-specific requirements, consideration of relevant explanations, written outcomes and a usable lawful challenge route, rather than assuming a universal procedural entitlement. An itemised coordinated response and a role/team contact are proportionate administrative requests; no general duty to name every employee or reopen every decision is asserted.

9.7 Settled status, dated records and individual consideration

Sections 3.6, 4.8 and 7.3 - residence. The UKVI letter records a 2019 settled-status grant; HRT7 records DWP's acceptance on 7 January 2026. ADM C1, C1871 states that EU settled status, as indefinite leave to remain, satisfies the right-to-reside limb for UC without separately establishing an EEA worker or self-employed right. Pre-settled status is a different route. Please apply the recorded status to its proper scope, subject to verification that it remains held. Current unemployment alone does not undo that residence right. The January letter does not decide every award condition.

Section 45. Border Security, Asylum and Immigration Act 2025, sections 45 and 65(3)(c), read with ADM 15/25, paragraphs 1–9, addresses citizens' entry/residence rights where EUSS qualifying residence was not residence under the relevant treaty rules. It commenced on 2 December 2025. The memo directs DWP to rely on Home Office EUSS status while held, without a separate Withdrawal Agreement Article 10 scope assessment. It expressly preserves the ordinary habitual-residence and benefit-specific eligibility rules. I rely on this bounded clarification, not a blanket guarantee of benefit or an exemption from evidence requirements.

Sections 3.5–3.6 and 7.3 - other circumstances. Please consider my unemployment and reported homelessness period where material to current requirements or available discretion. The January 2025 certificate establishes enrolment then; its expected completion date confirms neither current student status nor the actual cessation date. My June/July 2025 cessation remains my account, subject to relevant evidence. DWP's student guidance explains that student status and income may affect UC. The historic UKVI letter is not current digital proof, consistent with GOV.UK status guidance. Relevant dates and primary evidence remain necessary. No completed Suffolk qualification, student-finance treatment or finding on all benefit conditions is asserted.

9.8 Revision at any time and a usable decision-challenge route

Sections 4.8 and 5.4 - statutory grounds. Under the applicable decision scheme, SI 2013/381, regulations 2 and 9(a) provide for revision at any time of a decision arising from official error. The definition requires a qualifying official source and excludes material contribution by the claimant or someone outside the listed official bodies, and an error of law shown by a subsequent Upper Tribunal or court decision. A service failure or inaccurate note does not, without more, establish that the award decision arose from such an error. Other statutory revision grounds depend on their own conditions.

TR and GD. In TR and GD v SSWP (PIP/ESA) [2025] UKUT 332 (AAC), paragraphs 118–121, an application after 13 months must raise, in substance, grounds which, if made out, could amount to official error or another relevant any-time ground; it need not meet an arguable-case threshold. DWP consideration is required before tribunal jurisdiction arises. Appeal time ordinarily runs for one month from the revision notice being sent, with a maximum 13-month extension subject to the rules. A valid appeal permits merits consideration of the original decision; a supersession appeal remains bounded by the statutory supersession scheme. The judgment supplies a route, not a finding that my case satisfies it.

Application and limits. ADM 13/25, paragraphs 3 and 6–8, requires the decision and particular factual or legal grounds to be identified, without technical wording or a prescribed form. DWP should give the appropriate written outcome; appeal rights are not endlessly repeatable. I seek the records needed to identify any actual disputed decision and its correct route. Prepared but unprovided statements remain an unresolved evidence issue, not proof of official error. Sections 4.8 and 5.4 preserve the ordinary challenge route and deadlines. No unlimited reopening, automatic revision, arrears or compensation is asserted.